

25SMCV00554 25SMCV00554

County: los-angeles

Division: Civil Law and Motion

Department: 205

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Case Number: 25SMCV00554 Hearing Date: August 24, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ANNMARIE RIZZO,

Plaintiff,

v.

BOTANICAL HOSPITALITY GROPU, LLC, et al.,

Defendants.

Case No.: 25SMCV00554

Hearing Date: August 24, 2026

[TENTATIVE] order RE:

plaintiff's motion to enforce

settlement and request for

attorneys' fees and costs

BACKGROUND

This is a premises liability case. Plaintiff Annmarie Rizzo was a patron at Defendant E.P. & L.P. Rooftop Restaurant ("E.P.") for a going away party. She was thrown off a mechanical bull and injured.

She alleges that employees of E.P. encouraged her to ride the mechanical bull and drastically increased the speed of the bull while Plaintiff was on it. Plaintiff began screaming, but Defendants' employee did not stop or slow down the bull. As a result, Plaintiff was thrown from the bull, and because it was spinning so aggressively, the body of the bull smacked Plaintiff in the face as she fell.

Plaintiff sued E.P., Botanical Hospitality Group LLC ("Botanical") (a dba of E.P.) and David Combes (the President of Botanical). The operative complaint alleges claims for negligence and premises liability.

The parties entered into a Settlement Agreement on August 26, 2025. The Agreement was signed by David Combes on behalf of himself as well as the corporate defendants. Under the terms of the Agreement, Defendants agreed to pay \$100,000, in \$8,000 monthly sums beginning on September 14, 2025 for 12 consecutive months with the final payment due on August 14, 2026 in the amount of \$12,000. Defendants paid \$32,000 but have not paid the remaining amounts. Several of the checks issued by Defendants bounced.

Pursuant to the Settlement Agreement, "[i]n the event that any of the SETTLING PARTIES should bring an action or other proceeding against the other for the enforcement of, or seek a declaration as to, or assert by way of defense, any term or provision of this AGREEMENT, there shall be an award of reasonable attorney fees and costs to the prevailing party or parties as the case may be."

This hearing is on Plaintiff's motion to enforce the Settlement Agreement. Plaintiff requests that the Court issue a judgment against Defendants in the principal amount of \$68,000 plus an award of attorneys' fees and costs in the amount of \$1,500 for a total judgment of \$69,500. There was no opposition filed as of the posting of this tentative ruling.

LEGAL STANDARD

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Code Civ. Proc. §664.6 provides, in pertinent part, as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement."¿¿

In hearing a Code Civ. Proc. §664.6 motion, the trial court may receive evidence, determine disputed facts, and enter terms of a settlement agreement as a judgment.¿ (Bowers v. Raymond J. Lucia Companies, Inc. (2012) 206 Cal.App.4th 724, 732.) The Court may also receive oral testimony in addition to declarations. (Kohn v. Jaymar-Ruby, Inc. (1994) 23 Cal.App.4th 1530, 1533.) The Court may interpret the terms and conditions of the settlement (Fiore v. Alvord (1985) 182 Cal.App.3d 561, 566), but the Court may not create material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 810).¿

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute.¿ (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.)¿ The party seeking to enforce a settlement "must first establish the agreement at issue was set forth 'in a writing signed by the parties' (§ 664.6) or was made orally before the court.¿ [Citation.]"¿ (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304.)¿¿

The settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985.) "Parties" under Code Civ. Proc. § 664.6 means the litigants themselves, and not their attorneys, must expressly consent to settlement. (Levy v. Superior Court (1995) 10 Cal.4th 578, 586 ("we conclude that the term 'parties' as used in section 664.6...means the litigants themselves, and does not include their attorneys of record").)

DISCUSSION

Plaintiff's motion has two problems. First, Plaintiff has not authenticated the Settlement Agreement. It is simply attached to her motion. Second, while Plaintiff seeks attorneys' fees and costs, there is no declaration by counsel as to his hourly rate, the hours expended, or the tasks he performed.

CONCLUSION

Based on the foregoing, the Court DENIES Plaintiff's motion to enforce settlement without prejudice.

IT IS SO ORDERED.

DATED: August 24, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court